

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Shelton	Team: Squad #11	CCRB Case #: 201901626	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/16/2019 8:26 PM	Location of Incident: uptown platform of the 1/2/3 trains at the Times Square Subway Station	Precinct: 14	18 Mo. SOL 7/16/2020	EO SOL 3/2/2021	
Date/Time CV Reported Thu, 02/21/2019 2:53 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 02/21/2019 2:53 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Cesar Bermeo	29558	953679	TB M/TF
2. POF Samantha Humburg	21750	957691	TB M/TF
3. POM Derrick Williams	12049	929361	MTS PCT
4. LSA Joseph Rauchet	00000	902938	TB M/TF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Mermelstein	12443	956094	TB M/TF
2. POM Robert Moti	04149	918037	MTS PCT
3. POM Jae Choi	06059	956523	TB M/TF

Officer(s)	Allegation	Investigator Recommendation
A.POM Cesar Bermeo	Force: Police Officer Cesar Bermeo used physical force against § 87(2)(b)	
B.POM Derrick Williams	Abuse: Police Officer Derrick Williams interfered with § 87(2)(b)'s use of a recording device.	
C.LSA Joseph Rauchet	Abuse: Lieutenant Joseph Rauchet forcibly removed § 87(2)(b) to the hospital.	
D.POF Samantha Humburg	Abuse: Police Officer Samantha Humburg stopped § 87(2)(b)	
E.POM Cesar Bermeo	Abuse: Police Officer Cesar Bermeo took a photograph of § 87(2)(b)'s identification.	

Case Summary

On February 21, 2019, § 87(2)(b) filed this complaint with the CCRB via the agency's website.

On January 16, 2019, at approximately 8:26 p.m., § 87(2)(b) was on the uptown platform of the 1-/2-/3-train subway station at Times Square in Manhattan when he observed § 87(2)(b) with an apparent bloody injury to his leg on a staircase. § 87(2)(b) called 911 and Transit Manhattan Task Force officers responded, including PO Cesar Bermeo, PO Brian Mermelstein, PO Samantha Humburg, and PO Jae Choi. Midtown South Precinct officers PO Robert Moti and PO Derrick Williams also responded. PO Bermeo allegedly ordered § 87(2)(b) to move away from § 87(2)(b) and when § 87(2)(b) refused, PO Bermeo allegedly grabbed § 87(2)(b) and caused him to fall and break his glasses (**Allegation A: Force**, § 87(2)(g)). PO Bermeo, PO Choi, and another unidentified officer restrained § 87(2)(b) on the stairs. When § 87(2)(b) began recording officers' restraint of § 87(2)(b) on his cellphone, PO Williams allegedly told him not to record (**Allegation B: Abuse of Authority**, § 87(2)(g)). Lt. Joseph Rauchet of Transit Manhattan Task Force removed § 87(2)(b) from the subway station with Emergency Medical Services (EMS) to transport him to a hospital while allegedly strapped to a gurney (**Allegation C: Abuse of Authority**, § 87(2)(g)). PO Humburg allegedly stopped § 87(2)(b) from leaving the train station (**Allegations D: Abuse of Authority**, § 87(2)(g)) and PO Bermeo took a photograph of his identification (**Allegation E: Abuse of Authority**, § 87(2)(g)).

No arrests were made and no summonses were issued regarding this incident.

Cellphone footage was obtained from § 87(2)(b) (BR 01-04) and surveillance footage was obtained from the Metropolitan Transit Authority (MTA) (BR 05-06). The NYPD Legal Bureau indicated negative results for body-worn camera (BWC) footage related to this incident (BR 30). Neither Transit Manhattan Task Force nor the Midtown South Precinct were assigned BWCs at the time of the incident.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Cesar Bermeo used physical force against

§ 87(2)(b) MTA footage capturing the Times Square subway station at the time of the incident, recording events on 15 different cameras from 7:45 p.m. to 9:45 p.m., did not capture any part of this entire incident. (BR 05-06).

§ 87(2)(b) was waiting for an uptown train on the 1-/2-/3-train platform when he observed § 87(2)(b) bleeding from his leg and screaming from apparent pain (BR 07-09). § 87(2)(b) approached § 87(2)(b) to ask if he needed help. § 87(2)(b) had no intelligible response so § 87(2)(b) called 911 to report that § 87(2)(b) was injured. He put § 87(2)(b) on the phone with the 911 operator and § 87(2)(b) reported that he had been stabbed. Within four minutes, approximately 12 officers, including PO Bermeo, emerged onto the platform from the staircase upon which the § 87(2)(b) was sitting. Officers immediately surrounded § 87(2)(b) and § 87(2)(b). PO Bermeo ordered § 87(2)(b) to move out of the way. § 87(2)(b) did not move from where he was standing as he was concerned that the officers would not help § 87(2)(b). PO Bermeo reached out and grabbed the breast of § 87(2)(b)'s sweater with both hands. PO Bermeo turned § 87(2)(b) to the side and let go of § 87(2)(b). While PO Bermeo did not use much force when he turned § 87(2)(b)'s body, the action caused § 87(2)(b) to lose his balance while coming off the staircase and he fell onto the ground of the train platform. Officers began restraining § 87(2)(b) on the staircase. After the incident, § 87(2)(b) realized that the right lens of his eyeglasses was missing which he believed was due to when PO Bermeo caused him to fall. This property damage was deemed incidental to the alleged force and is not being plead

separately. § 87(2)(b) provided the shield number of the subject of this allegation as #23558, which is a close match to PO Bermeo's shield number, #29558.

§ 87(2)(b) was identified via Aided report number § 87(2)(b), prepared by PO Mermelstein, regarding this incident (BR 10). The report noted his date of birth and he was listed as homeless but the report also noted a home address. No phone number or email address was provided in the report. A subsequent Google search revealed this to be an address of a homeless shelter and the New York City Department of Homeless Services indicated § 87(2)(b) was last in their system in § 87(2)(b) (BR 31). The Aided report additionally indicated that § 87(2)(b) was emotionally disturbed who appeared to be under the influence of synthetic marijuana with lacerations to one of his legs and was voluntarily removed to § 87(2)(b). Additional mailing addresses and phone numbers were gleaned from querying the databases of LexisNexis, CLEAR, and the New York State Department of Motor Vehicles of Vehicles. The investigation attempted to reach § 87(2)(b) with this contact information without success so his testimony was not obtained.

PO Bermeo was the first officer to respond to a radio run for a possibly stabbed male at a subway station and observed § 87(2)(b) standing on the platform by the staircase on which laid § 87(2)(b) (BR 11). PO Bermeo did not recall when other officers, including his partner PO Mermelstein, arrived on scene. PO Bermeo asked § 87(2)(b) if he called 911 and if § 87(2)(b) was the reported victim, both of which § 87(2)(b) confirmed. PO Bermeo attempted to speak to § 87(2)(b) who started cursing at PO Bermeo, acting irate and telling the officer to leave him alone. PO Bermeo asked § 87(2)(b) what § 87(2)(b) told him and § 87(2)(b) told the officer that § 87(2)(b) previously stated he was stabbed. PO Bermeo asked § 87(2)(b) if he witnessed the stabbing or any injury and § 87(2)(b) stated he did not. PO Bermeo did not recall any further interactions he had with § 87(2)(b). PO Bermeo returned his attention to § 87(2)(b) at which point other officers were on scene, and he and other officers soon began restraining § 87(2)(b) on the staircase. PO Bermeo did not recall himself or any other officer physically interacting with any other civilian besides § 87(2)(b). PO Bermeo did not recall any civilians' glasses breaking at any point during the incident.

When PO Mermelstein arrived on scene, he observed three officers, including PO Bermeo and others he did not recall, holding down § 87(2)(b) on a staircase (BR 12). There were civilians on scene. PO Mermelstein did not recall any civilians impeding officers during the incident and he did not observe any officers physically interacting with any civilians other than § 87(2)(b).

When PO Choi responded, he observed § 87(2)(b) on the staircase (BR 13). He did not observe any officers restraining § 87(2)(b) and approached him and asked him if he needed medical attention, which § 87(2)(b) loudly refused. PO Choi did not recall any specific bystanders and described usual high foot traffic at the Times Square Station in the evening. PO Choi was not aware of any officer having any physical interaction with any civilians. He did not recall any damage to any civilian's eyeglasses. PO Choi's memo book lists him as backing "TSI (Times Square Initiative) Post 4" (BR 14).

The Transit Manhattan Task Force roll call lists TSI Post 4 as PO Bermeo (BR 15).

The Event Information, ICAD # § 87(2)(b) for this incident detailed that § 87(2)(b) called 911 at 8:26 p.m. and that the first two units that arrived on scene were "TSP12" and "TSP4" of Transit District 1 at 8:27 pm. and 8:28 p.m., respectively (BR 16). There are no corresponding units listed on Transit District's roll call at the time of this incident (BR 17). No units from the Transit Manhattan Task Force were listed in the Event Information.

§ 87(2)(g)

Allegation B: Police Officer Derrick Williams interfered with § 87(2)(b)'s use of a recording device.

Footage from § 87(2)(b)'s cellphone best depicts this allegation (BR 01). In discussing the footage, the video player's durational timestamp will be referenced and there is no onscreen timestamp. The audio is distorted at times, which § 87(2)(b) confirmed might have been due to the way he was holding his cellphone as he recorded. From 00:30 to 00:45, § 87(2)(b) stands at the bottom of the staircase as he states he does not know § 87(2)(b) or what exactly happened and complains about officers' restraint of § 87(2)(b). An officer off-screen states, "I know, we tried to," and a 911 operator on speakerphone tells § 87(2)(b) that an ambulance will be there as soon as possible. At 00:45, § 87(2)(b) states, "No, I will not stop recording," and PO Williams asks, "What happened?" From 01:30 to 01:44, § 87(2)(b) moves and multiple officers on scene are depicted on or near the staircase and PO Williams is apparently the only black male. Additional footage from § 87(2)(b)'s cellphone depicts, referencing the video player's durational timestamp, from 02:59 to 03:44, an officer speaks to § 87(2)(b) and asks for his identification, at which point § 87(2)(b) declines to provide it as he does not trust the officers (BR 02).

§ 87(2)(b) did not raise this allegation in his initial verified statement though when reached out to for follow-up questions regarding the footage he provided, he confirmed that a 6'-tall black male officer in uniform with no glasses and close-cut hair told him to stop recording. When this officer asked him for his information later, § 87(2)(b) told him he did not trust him or the other officers.

PO Williams is a § 87(2)(b). PO Williams had no recollection of the incident and did not recognize § 87(2)(b) or § 87(2)(b) when presented photographs (BR 18). PO Williams did not recognize the events depicted in above-referenced footage but identified himself as asking § 87(2)(b) "What happened?" He did not know why § 87(2)(b) stated, "No, I will not stop recording." He additionally recognized his own voice or his partner PO Moti's, as PO Williams explained they have similar-sounding voices, as speaking to § 87(2)(b) when he is asked for his identification.

PO Moti recalled at one point during the incident an individual at the top of a staircase may have been recording the incident with his cellphone (BR 19). PO Moti was not aware of any officer who attempted to intervene with this individual's ability to record by telling him to stop recording. When presented the above-referenced footage, PO Moti did not know why § 87(2)(b) stated, "No, I will not stop recording." He did not recognize the conversation or voices in the second portion of footage referenced above.

PO Bermeo, PO Mermelstein, PO Choi, and PO Humburg, did not recall any civilians attempt to record the incident nor any officers that intervened in such recording (BR 20).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: Lieutenant Joseph Rauchet forcibly removed § 87(2)(b) to the hospital.

Footage from § 87(2)(b)'s cellphone depicts officers' initial restraint of § 87(2)(b) (BR 01). In discussing the footage, the video player's durational timestamp will be referenced and there is no onscreen timestamp. From 00:00 to 01:51, PO Bermeo, PO Choi, and another unidentified officer hold § 87(2)(b)'s upper body as he tries to stand and the officers use their grips on his body to force him back down to the staircase. Footage from § 87(2)(b)'s cellphone depicts Lt. Rauchet's involvement in the incident (BR 04). In discussing the footage, the video player's durational timestamp will be referenced and there is no onscreen timestamp. From 6:00 to 7:19, Lt. Rauchet is apparently speaking to EMS and then to § 87(2)(b) who is on an idling

train until § 87(2)(b) tells officers that he originally called 911. From 7:19 to 7:52, PO Humburg speaks to Lt. Rauchet before approaching § 87(2)(b). In none of the available footage is § 87(2)(b) heard making any statements threatening to harm himself.

§ 87(2)(b) described officers' initial restraint of § 87(2)(b) on the staircase consistent with the video footage in that PO Bermeo and other unidentified officers grabbed § 87(2)(b) by his torso and his arms and held him on the staircase as § 87(2)(b) attempted to rise. After approximately five minutes and the arrival of multiple additional officers, a train arrived at the platform. Officers evacuated the train and brought § 87(2)(b) onto the train by holding him upright by his arms and torso and guiding him onto the train. EMS arrived after approximately five minutes, assessed § 87(2)(b) on the train, and carried him to the street via a stretcher.

PO Bermeo described § 87(2)(b) as refusing officers' attention and attempted to get off the staircase and walk away. Due to the staircase's proximity to the edge of the platform, PO Bermeo was concerned that § 87(2)(b) might fall into the tracks, in addition to the danger his potential stabbing injury posed. PO Bermeo held § 87(2)(b)'s upper body and exerted minimal pressure only enough to keep him from rising from the stairs. § 87(2)(b) moved his body away from the stairs and PO Bermeo exerted reciprocal downward pressure in ensuring § 87(2)(b) remained on the stairs. Other unidentified officers helped restrain § 87(2)(b) in a similar manner. § 87(2)(b) continuously tried to get off the stairs by rising and moving toward officers. When EMS arrived on scene, PO Bermeo and the other officers stopped physically restraining § 87(2)(b). PO Bermeo observed his supervisor, Lt. Rauchet, on scene. PO Bermeo explained the incident to Lt. Rauchet. After briefly speaking to Lt. Rauchet, PO Bermeo noticed § 87(2)(b) sitting on a crowded train. EMS told PO Bermeo that § 87(2)(b) was not allowing EMTs to look at him at all. Officers evacuated the train and ushered civilians away from the area. § 87(2)(b) got up and went in between train car doors. He threatened to kill himself by jumping on the third rail. At this point, Lt. Rauchet took control of the situation. PO Bermeo and other officers performed crowd control. While focused on crowd control, § 87(2)(b) somehow got off the train with uniformed officers and EMS of his own volition. Despite his initial non-compliance, § 87(2)(b) seemed to be agreeing with the removal but PO Bermeo did not know how compliance was elicited from § 87(2)(b).

When PO Mermelstein arrived on scene, he observed PO Bermeo and two unidentified officers holding § 87(2)(b) down on the staircase and his arms close to his body. § 87(2)(b) was lying down, generally yelling and flailing his arms. Lt. Rauchet arrived approximately one minute after PO Mermelstein. EMS assistance was requested for § 87(2)(b) after Lt. Rauchet determined that § 87(2)(b) required medical attention and classified him as an emotionally disturbed person (EDP). § 87(2)(b) was restrained on the stairs for approximately five minutes before he moved to a train car and stated that he wanted to jump onto the train tracks. EMS arrived on scene. Lt. Rauchet explained to § 87(2)(b) that he was in charge and that § 87(2)(b) did not have to talk to anyone other than him. Lt. Rauchet somehow gained compliance from § 87(2)(b) and they both, with PO Mermelstein and EMS, walked upstairs to the ambulance together.

PO Choi stated that after § 87(2)(b) refused medical attention, officers could not let him leave because of his untreated open wound and as he was a possible EDP, due to the fact he yelled and screamed at officers who were trying to help him. PO Choi, or possibly another officer, called for an ambulance over the radio and he went upstairs to wait for it. He did not recall any supervisors on scene. When the ambulance arrived, PO Choi returned to the scene with EMS and observed § 87(2)(b) on a train that was held in the station. He did not recall what § 87(2)(b) was doing or saying. He did not recall how § 87(2)(b) was removed from the subway station. When presented the above-referenced footage, PO Choi did not recall the events and recognized no officers other than himself and he still did not recall any physical interactions he had during the incident.

Upon his arrival on scene, PO Moti observed unidentified uniformed officers attempting to

restrain § 87(2)(b) by grabbing his arms. § 87(2)(b) moved his hands around to avoid being secured. PO Moti described § 87(2)(b) as an EDP because he was disorderly, behaved erratically and emotionally unstable. PO Moti could not provide specific examples for any of this behavior other than resisting restraint and generally yelling. PO Moti assumed crowd control duties and instructed members of the public to step back from the incident. Officers were unsuccessful in their restraint and § 87(2)(b) walked onto a train that had just pulled into the subway station. § 87(2)(b) went in between train cars and stated he wanted to jump on the third rail of the tracks. A plainclothes supervisor whom PO Moti did not recognize from an unknown command arrived on scene. PO Moti identified him as a supervisor due to his shield, though PO Moti did not recall the exact type of shield or rank. The supervisor told PO Moti and other officers to step back and set up a safety zone around the train and began to speak to § 87(2)(b). PO Moti continued general crowd control. He did not recall EMS being requested or present on scene at any point. After observing officers from other commands in control of the situation, PO Moti and PO Williams resumed their routine patrol.

PO Humburg did not recall the incident. When presented the above-referenced footage, she identified Lt. Rauchet.

PO Williams did not recall the incident.

The NYPD's Department Advocate's Office reported that Lt. Rauchet retired on February 1, 2019 (BR 21).

The Event Information, ICAD #§ 87(2)(b) for this incident notes that EMS was dispatched at 8:27 p.m. by the 911 operator when § 87(2)(b) first called, and they arrived on scene at 8:34 p.m. At 8:38 p.m., an unidentified lieutenant requested ESU and at 8:46 p.m., "TRANSIT" confirmed the ESU request for an EDP on the tracks. At 8:53 p.m., it was reported that a male EDP threatened to jump into the track area. At 9:04 p.m., a Times Square lieutenant clarified that the incident regarded an EDP Aided.

The Aided report prepared by PO Mermelstein regarding § 87(2)(b)'s removal to the hospital indicated that § 87(2)(b) had verbally threatened others, spoke of harming himself or others, and placed himself in a dangerous situation. PO Mermelstein did not recall any statements made by § 87(2)(b) that verbally threatened others and only recalled § 87(2)(b) state that he wanted to jump on the tracks.

PO Bermeo, PO Mermelstein, and PO Moti were consistent in that Lt. Rauchet, a plainclothes supervisor, took control of the situation in removing § 87(2)(b) to a hospital with EMS after § 87(2)(b) threatened to jump on the tracks. This is corroborated by Lt. Rauchet's depicted actions in the video evidence. Though EMS was initially dispatched by the 911 operator when § 87(2)(b) reported him as a stabbing victim, Lt. Rauchet was actively involved in identifying § 87(2)(b) as an EDP and removing him to a hospital.

§ 87(2)(g)

Allegation D: Police Officer Samantha Humburg stopped § 87(2)(b)

Footage from § 87(2)(b)'s cellphone depicts Lt. Rauchet's involvement in the incident (BR 04). In discussing the footage, the video player's durational timestamp will be referenced and there is no onscreen timestamp. From 7:51 to 09:20, § 87(2)(b) speaks with PO Bermeo on the train platform regarding why he called 911, what he observed, and what he knew regarding § 87(2)(b)'s injury. PO Humburg stand nearby until 08:04 when she walks away to apparently speak to another individual. § 87(2)(b) is not depicted having any further interactions with officers. At 11:10, § 87(2)(b) moves upstairs from the platform and records people moving upstairs as EMS bring a gurney to the platform until the video ends. PO Humburg is not depicted having any direct interaction with § 87(2)(b).

§ 87(2)(b) stated that once § 87(2)(b) was removed from the subway station by EMS, PO Humburg and PO Williams asked § 87(2)(b) if he could provide a statement regarding

what had happened. § 87(2)(b) agreed and the officers asked him to follow them to the other side of the turnstiles. Once through the turnstiles, PO Humburg asked § 87(2)(b) for his identification and phone number. § 87(2)(b) did not want to provide his phone number. § 87(2)(b) turned and started walking back to the turnstiles to re-enter the subway station. PO Humburg grabbed § 87(2)(b) with both hands by the breast of his sweater and kept repeating, “We need your ID and your statement. Don’t leave.” § 87(2)(b) asked if he was under arrest. PO Humburg told him that he was not under arrest. § 87(2)(b) told the officers he would provide identification and PO Humburg let go of him.

PO Humburg, PO Williams, PO Moti, PO Bermeo, PO Mermelstein, and PO Choi had no recollection of this allegation.

§ 87(2)(g)

Allegation E: Police Officer Cesar Bermeo took a photograph of § 87(2)(b) s identification.

§ 87(2)(b) stated that after PO Humburg allegedly stopped him and told him officers needed his phone number and identification, § 87(2)(b) told officers he did not want to provide his phone number and allegedly handed his identification to PO Moti who took a photograph of it. PO Moti asked him what happened. § 87(2)(b) provided a statement to PO Moti and he re-entered the subway station.

Though § 87(2)(b) named PO Moti as the subject of this allegation, the investigation determined that PO Bermeo took a photograph of § 87(2)(b) s identification.

PO Bermeo stated he did not recall taking any photographs during the incident and observed no officers take any photographs.

PO Moti did not know if he asked any civilians for any information or if he took any photographs of any civilians’ identifications or anything else. He did not believe he did either.

PO Humburg and PO Williams did not recall the incident, and PO Mermelstein and PO Choi recalled no officers taking any photographs.

IAB provided all photographs taken by PO Bermeo on his department-issued cellphone during the incident, which included only a photograph of § 87(2)(b) s identification (BR 22). IAB indicated that PO Moti took no photos on his department-issued cellphone during the incident (BR 23).

Police officers are to use their department-issued smartphones for NYPD business and are permitted to use their phones to photograph or record the following: all enforcement encounters where there is at least reasonable suspicion that a person has committed or is committing criminal activity, all enforcement encounters where there is a reason to believe that the individual is committing an offense for which a summons may be issued, all vehicle stops, all incidents where an officer is taking or attempting to take a person into custody, all incidents involving force, any public interaction that escalates and becomes adversarial, all interior vertical patrols of buildings pursuant to certain sections of the Patrol Guide, and following lawful entry pursuant to a search warrant (BR 24). Officers are prohibited from using their phones to photograph or record the following: encounters not directly relate to official activities in the proper performance of police duties, performance of non-enforcement functions or administrative duties with a Department facility, places where a reasonable expectation of privacy exists, attendance at events covered under the “Handschu Guidelines,” a potential witness who requests to speak to an officer confidentially or desires anonymity, a victim or witness who requests they not be recorded, and access or entry to any premises to be searched pursuant to a warrant (NYPD Operations Order 20).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (BR 25).
- This is the first CCRB complaint to which § 87(2)(b) has been party (BR 26).
- PO Bermeo has been a member-of-service for six years and has been subject of two other allegations in one other CCRB complaint with no substantiations (see officer history). § 87(2)(g)
- PO Williams has been a member-of-service for 18 years and has been subject of three other allegations in two other CCRB complaints with no substantiations (see officer history). § 87(2)(g)
- Lt. Rauchet was a member-of-service for 29 years and was subject of 11 other allegations in five other CCRB complaints with three substantiations (see officer history):
 - Case #200000491 involved three substantiated allegations of frisk and/or searches. The Board recommended Charges and the NYPD imposed discipline and penalty were not available due to the lieutenant's retired status.
 - § 87(2)(g)
- PO Humburg has been a member-of-service for four years and has been subject of one other allegation in one other CCRB complaint with no substantiations (see officer history). § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- On December 23, 2019, a FOIL request was submitted with the New York City Comptroller's Office and will be added to the case file upon receipt (BR 27).
- § 87(2)(b) has no criminal convictions within New York City (BR 28).
- § 87(2)(b)

Investigator: _____

Signature Inv. Benjamin Shelton _____

Print Title & Name Date

Squad Leader: _____

Signature IM Edwin Peña Date
Print Title & Name

Reviewer: _____

Signature Print Title & Name Date